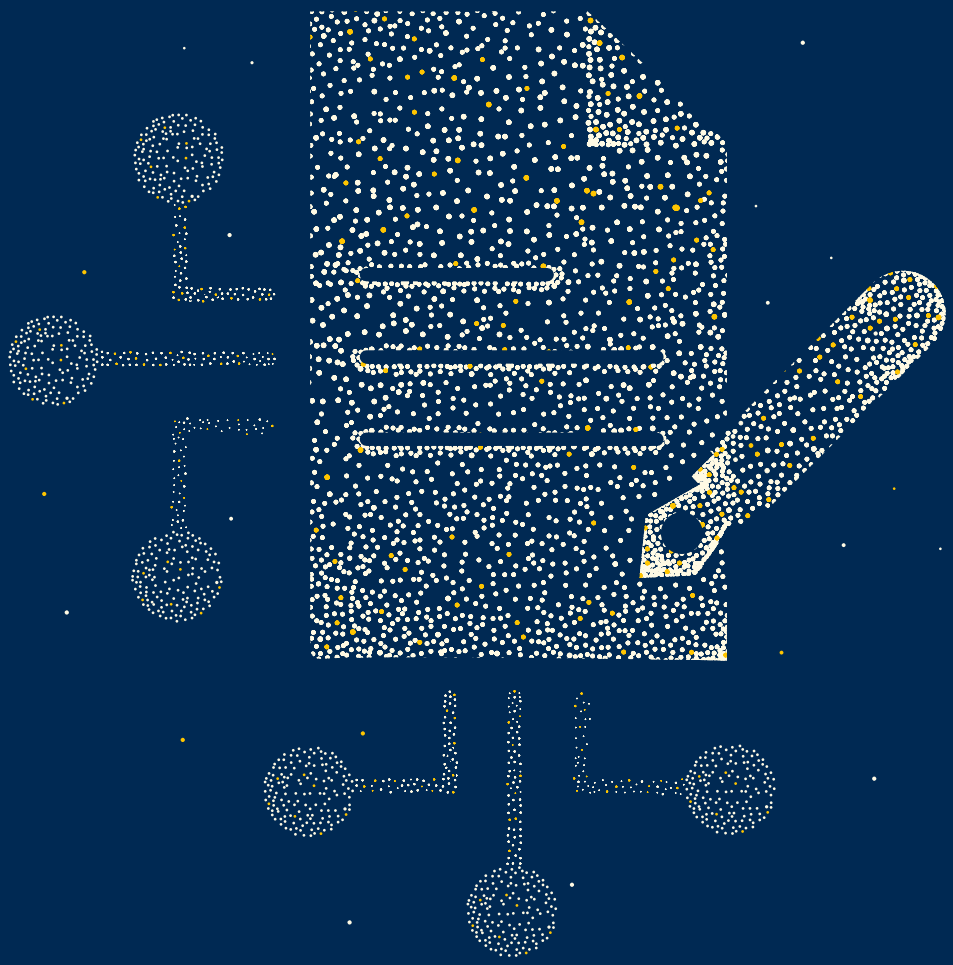
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GOVERNING AI

NINE EMERGING APPROACHES FOR LAWMAKERS WORLDWIDE

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SHORT SUMMARY

This issue brief is launched in the leadup to the first Global Dialogue on AI Governance in Geneva, established by the United Nations General Assembly as an inclusive platform to deliberate on today's most pressing AI challenges and advance the commitments of the Global Digital Compact and Pact for the Future. While many international processes focus on high level principles and geopolitical dynamics, parliamentarians now face an urgent, practical question: how, concretely, should AI be governed in different national contexts. Responding to this need, the brief provides an overview of nine emerging AI regulatory approaches—from principles based and standards-based models to risk, rights and liability-oriented frameworks—illustrated with laws and bills from all regions of the world. Its purpose is to give legislators and their advisers a clear, structured menu of options they can adapt and combine when engaging in the Global Dialogue and in domestic lawmaking.

As the UN's specialized agency, whose 193 Member States adopted the Recommendation on the Ethics of Artificial Intelligence, UNESCO brings to the Dialogue a track record of assisting countries translate global norms into concrete policies and regulations. By mapping regulatory approaches along a spectrum from light-touch to more stringent tools and highlighting human rights, inclusion and capacity-building as cross-cutting considerations, the brief aims to support discussions on AI governance, building on the experience of countries around the world.

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Executive Summary

Since 2016, many countries have passed laws explicitly mentioning artificial intelligence (AI), and the global discussion of AI bills in legislative bodies has increased in the last three years. This policy brief aims to inform legislators and their advisory teams about the regulatory approaches to AI currently under consideration by legislative bodies worldwide. The brief helps legislators answer a central question before they pass AI laws: what are the different approaches to AI governance?

The brief explains nine emerging regulatory approaches; each illustrated with specific cases from around the world. The order in which the nine AI regulatory approaches are presented is deliberately structured to guide readers from light-touch regulatory measures to more demanding approaches. These regulatory approaches are not mutually exclusive, and AI laws and bills often combine two or more approaches:

- **Principles-Based Approach:** Offer stakeholders a set of fundamental propositions (principles) that guide the development and use of AI systems through ethical, human-centric, and human-rights-abiding processes.
- **Standards-Based Approach:** Use technical standards developed by standard-setting organisations as references, to provide operational precision to mandatory rules and create legal incentives — such as presumptions of regulatory conformity — for organisations that align their AI systems with such standards.
- **Agile and Experimentalist Approach:** Generate flexible regulatory schemes, such as regulatory sandboxes and other testbeds, that allow organisations to test new business models, infrastructure, and tools under more flexible regulatory conditions, with oversight and support from public authorities. Facilitating and Enabling Approach: Facilitate and enable an environment that encourages all stakeholders involved in the AI lifecycle to develop and use responsible, ethical, and human rights-compliant AI systems.
- **Access to Information and Transparency Mandates Approach:** Require the deployment of transparency instruments that enable the public to access basic information about AI systems.
- **Adapting Existing Laws Approach:** Amend sector-specific rules (e.g., health, finance, education, electoral, justice) and transversal rules (e.g., criminal codes, public procurement, data protection laws, labour laws) to make incremental improvements to the existing regulatory framework.
- **Risk-Based Approach:** Establish obligations and requirements based on an assessment of the risks associated with the deployment and use of certain AI tools in specific contexts.
- **Mandatory Rights-Based Approach:** Enshrine new individuals' rights and set binding obligations to protect human rights.
- **Liability Approach:** Assign responsibility and sanctions to problematic development and uses of AI systems.

1. Introduction

This policy brief discusses emerging approaches to regulating thevalue chains of artificial intelligence (AI) systems worldwide. Its objective is to inform parliamentarians about the various regulatory approaches to AI under consideration worldwide. In this policy brief, "regulatory approaches" refer to the strategies, methods, and tools that legislative or regulatory bodies use to achieve policy objectives through regulation.

Furthermore, in this policy brief, we understand "regulation" in a narrow sense as a "specific set of commands" consisting of "a binding set of rules to be applied by a body devoted to this purpose."[1] The policy brief will address mandatory rules issued by public bodies that may affect participants' activities at any stage of an AI system's life cycle. The rules are not limited to prohibitions or limits; they also include enabling and facilitative approaches concerning the development and adoption of AI systems. Since this policy brief aims to inform parliamentarians, we will focus on AI laws promulgated or discussed by national or supranational legislative bodies. Therefore, the policy brief does not engage with rules that may emerge from subnational legislative bodies, regulatory agencies of the Executive authorities or rulings issued by the Judicial authorities. Furthermore, it will focus on regulations that specifically target or substantially address AI systems, and will not consider bills or laws that merely mention AI incidentally or marginally.

This policy brief will focus on the regulatory role, as legislative bodies are central to the development of regulatory frameworks. Furthermore, legislative bodies are an appropriate forum for discussing, creating, and defining the obligations and rights of people and organisations through mandatory rules.

The elaboration of this paper was informed by the Inter-Parliamentary Union's (IPU) Assembly in Geneva, held from 23 to 27 March 2024, along with feedback from IPU meetings. The paper also considers input from three webinars on the subject, organised by IPU, the United Nations Educational, Scientific, and Cultural Organization (UNESCO), and the Internet Governance Forum (IGF) for parliamentarians. Furthermore, in August 2024, UNESCO published a draft of the paper for public consultation. Between August and October 2024, UNESCO received over 100 submissions from individuals and organisations in 36 countries and territories across Africa, the Americas, Asia, Europe, and Oceania.[2]

In this policy brief, AI systems are computational systems that "process data and information in a way that resembles intelligent behaviour, and typically includes aspects of reasoning, learning, perception, prediction, planning or control."[3] This is a working definition based on the UNESCO's Recommendation on the Ethics of Artificial Intelligence, but it is pertinent to mention that there are myriad definitions of AI systems proposed by the academic literature, other international organisations, and AI laws and bills.

This point is important because the definition of "AI system" will determine the law's scope. In other words, it will define which computational systems and processes associated with these technologies are subject to limits, obligations, and rights. Consequently, the definition of the object of regulation—which technologies are deemed AI—is a matter discussed not only at the outset but throughout the regulatory process.

The policy brief has three main sections. This introductory section establishes the scope of the policy brief. The second section addresses the key question of the policy brief: what are the different approaches to AI governance? This section describes nine different regulatory approaches emerging worldwide and illustrates each with specific cases. The final section concludes with recommendations for policymakers.

2. Emerging AI regulatory approaches

Global AI governance frameworks comprise diverse stakeholders and institutional arrangements that define how AI systems are developed and used. These frameworks transcend regulations and national governments; they include other binding (e.g., treaties, contracts) and non-binding instruments (e.g., guidelines, standards) and a variety of actors, including international, national, and subnational stakeholders such as businesses, multilateral organisations, academia, and civil society organisations.

UNESCO's Recommendation on the Ethics of Artificial Intelligence is an example of a global standard that aims to ensure that AI governance promotes ethical, and human-rights-abiding AI system development and adoption. The Recommendation is the first global standard-setting instrument on AI Ethics, adopted by 193 Member States in November 2021. It is intended to support Member States in developing policy, regulatory and institutional measures that give practical effect to its principles. UNESCO's Recommendation has effectively influenced the development of policy and regulatory instruments, and its principles can be traced in some AI bills currently being discussed or in preparation.

Moreover, the United Nations (UN) General Assembly has adopted two key resolutions that contribute to the construction of AI global governance: the resolution A/RES/78/311 of 21 March 2024 on Seizing the opportunities of safe, secure and trustworthy artificial intelligence systems for sustainable development and the resolution A/RES/78/265 of 1 July 2024 on "Enhancing international cooperation on capacity-building of artificial intelligence".[4]

This section describes nine regulatory approaches (Figure 1) influenced by AI governance frameworks at the international, national, and subnational levels. Although the section describes diverse forms of AI regulation, it is important to remember that regulations are not developed and implemented in a vacuum; various stakeholders and institutional arrangements contribute to their development.

Regulatory instruments may draw from a spectrum of approaches—ranging from self-regulatory and soft-law mechanisms to more robust forms of statutory and institutional governance. This section outlines nine such approaches, acknowledging that they often overlap and can operate in combination rather than as mutually exclusive models. The approaches are not listed in order of importance or desirability.

Furthermore, it is important to note that this issue brief mentions several legislative initiatives purely as illustrations of the typologies we discuss, their presentation here doesn't mean an assessment vis-à-vis the alignment of these laws with international human rights law.



Figure No. 1. Taxonomy of AI regulatory approaches
Source: Elaborated by the author

Finally, AI regulatory approaches may evolve; for instance, a jurisdiction might initially implement a principles-based approach to AI regulation (that could be considered a baseline and transversal approach) and subsequently explore and adopt other approaches.

2.1 Principles-based Approach

The principles-based regulatory approach offers stakeholders a set of fundamental propositions (principles) that guide the development and use of AI systems through ethical, responsible, human-centric, and human-rights-abiding processes. UNESCO's Recommendation on the Ethics of Artificial Intelligence and the OECD's Recommendation of the Council on Artificial Intelligence[5] are examples of international instruments promoting AI principles relevant to all stakeholders.[6]

The AI laws and AI bills of different countries explicitly and implicitly reproduce the principles enshrined in UNESCO's instruments. This is the case of Peru's Law No. 31814 of 2023[7] that enshrines principles such as "risk-based security standards", "multi-stakeholder approach", "ethical development for responsible artificial intelligence", and "privacy"; and the Philippines' "AI Regulation Act" bill (HB 7913), which establishes six principles (section 4) that should guide the development, application and use of AI systems: inclusive growth, sustainable development, and well-being; human-centred values and fairness; robustness, security and safety; accountability; transparency and explainability; and trust.

AI regulations based solely on principles do not impose specific obligations or limitations on public bodies, private organisations, or individuals, nor do they carry legal consequences for non-compliance. It is up to the law's subjects to judge how they adjust their behaviour in accordance with the principles.

However, the principles-based approach may be combined with other regulatory approaches that create specific obligations and rights. The principles aim to orient how mandatory rules should be interpreted and enforced in these cases. For example, the United Kingdom's "pro-innovation to AI regulation" white paper proposed a principles-based approach in which regulators must consider these principles when implementing existing rules.

2.2 Standards-based Approach

The standards-based approach uses technical standards developed by standard-setting organisations as references to provide operational precision to mandatory rules and create legal incentives — such as presumptions of regulatory conformity — for organisations that align their AI systems with such standards. These standard-setting bodies may be public, private, or hybrid organisations. Moreover, under this approach, regulation explicitly acknowledges that technical standards may guide the implementation of mandatory rules. This approach enables professional and industry organisations to participate, directly or indirectly, in developing technical standards governing the AI system's life-cycle processes and activities.

Article 40 of the EU's AI Act, for example, establishes that high-risk AI systems or general-purpose AI models that comply with "harmonised standards … shall be presumed to be in conformity" with regulatory requirements such as establishing a risk management system; using high-quality data sets for training, validation, and testing; preparing technical documentation and keeping it updated; ensuring traceability through automatic recording of events (logs); designing systems that are sufficiently transparent to ensure that deployers can understand and use them correctly; developing systems that allow for effective human oversight; and, designing systems with an adequate level of accuracy, robustness, and cybersecurity.[8]

The United Kingdom's AI Standards Hub, part of its National AI Strategy, has identified nearly 500 AI-relevant standards that address myriad areas such as accountability, accuracy and performance, AI procurement, bias and discrimination, data (collection, management, processing, protection, quality, sharing), documentation, explainability and transparency, formal verification, human rights, human centred-design, human-computer interaction, interoperability, organisational governance, privacy, project management, risk management, robustness, safety, security and resilience, skills and readiness, stakeholder engagement and communication and sustainability, system architecture, system lifecycle, and system quality.[9]

Finally, it is worth noting that industry standards are often developed before formal regulatory approaches and can inform future regulatory initiatives.



“In order for the public at large to deepen their understanding and interest in artificial intelligence-related technologies, the national government shall promote education and learning related to artificial intelligence-related technologies, enhance public relations activities, and take any other necessary measures.”

Source: Kyoungsic Min, ‘Comparative Analysis of Japan’s AI Draft Bill and Korea’s AI Act / English Translation of Japan’s Bill’ (3 March 2025)

2.3 Agile and Experimentalist Approach

Agile approaches have been implemented to develop flexible regulatory schemes across diverse economic sectors, such as telecommunications and finance, as well as for transversal legislation, such as data protection and privacy laws, and public procurement.[10] One such approach is the use of regulatory sandboxes, which create spaces for public and private organisations to test new business models, infrastructure, and tools under more flexible regulatory conditions, with oversight and accompaniment from public authorities.

The EU's AI Act, for example, establishes a framework for the creation of AI regulatory sandboxes, which consist, according to article 3(44 bg), of a *"concrete and controlled framework set up by a competent authority which offers providers or prospective providers of AI systems the possibility to develop, train, validate and test, where appropriate in real world conditions, an innovative AI system, pursuant to a sandbox plan for a limited time under regulatory supervision."* Under article 57 of the EU's AI Act, each Member State should ensure that its national competent authorities establish AI regulatory sandboxes at the national, regional, or local level. The providers and prospective providers that meet the eligibility and selection criteria to participate in AI regulatory sandboxes may access, during a limited period, regulatory exceptions and guidance on fulfilling the requirements and obligations set out by the AI Act.

Additionally, article 19 of South Korea's AI Act authorises the government to establish regulatory sandboxes: *"The government shall actively support the smooth implementation of temporary permits and regulatory sandboxes for AI-converged products and services..."*.[11]

Finally, it is important to note that experimentation can yield new insights into how novel regulatory frameworks might affect, and consequently, the results of such experimental processes could inform future (de)regulation initiatives.

2.4 Facilitating and Enabling Approach

Regulatory instruments can aim to facilitate and enable an environment that encourages ethical and human_rights-compliant AI systems by the private and public sectors. Creating and fostering such conditions for AI are key roles for countries. AI laws and bills can include provisions that aim to build capabilities in human capital, technology, infrastructure, and institutional contexts.

Some examples of such approaches can be found in Asia and Latin America. Japan's AI Act, enacted on 28 May 2025,[12] aims to promote AI research (article 11), facilitate infrastructure sharing and readiness (article 12), train and develop human talent (article 14), and promote education and public awareness on AI (article 15). With regards to the latter, article 15 establishes: *"In order for the public at large to deepen their understanding and interest in artificial intelligence-related technologies, the national government shall promote education and learning related to artificial intelligence-related technologies, enhance public relations activities, and take any other necessary measures."*[13] Moreover, articles 16 to 23 of South Korea's AI Act *"outline support for AI clusters, workforce training, and international cooperation."*[14] In particular, it is pertinent to note that national legislation can facilitate cross-border AI cooperation, including efforts to develop interoperability frameworks, which strengthen data infrastructure to leverage AI effectively.

Likewise, article 2 of Peru's Law No. 31814 of 2023 establishes that *"It is in the national interest to promote digital talent in the use of emerging and new technologies for social and economic welfare."*

2.5 Access to Information and Transparency Mandates Approach

Algorithmic transparency is among the most common AI principles in ethical frameworks and AI bills worldwide.[15] Compliance with this principle entails the deployment of transparency instruments, including through the application of existing Access to Information laws. These enable the population to access basic information about AI systems adopted by public and private sector organisations. The scope of the disclosed information may include various aspects of an AI system's life cycle, including how the model was

developed, what data was used to train it, how the system works, the system's performance, what the implications of the system are for the procedures its supports, how people can contest decisions made with the input of the system, among others.[16]

Few countries have already adopted algorithmic transparency obligations for public bodies through legislation. In France, for example, article 6 of Law N° 2016-1321 ("for a Digital Republic") orders that public bodies must publish "the rules defining the main algorithmic processes used in the exercise of their functions when they are the basis for individual decisions."[17]

Moreover, article 50 of the EU's AI Act establishes transparency obligations for providers of AI Systems, such as ensuring "that AI systems intended to interact directly with natural persons are designed and developed in such a way that the natural persons concerned are informed that they are interacting with an AI system" and "that the outputs of the AI system are marked in a machine-readable format and detectable as artificially generated or manipulated". The article also creates obligations for users that deploy an AI system. For example, a user "that generates or manipulates image, audio or video content constituting a deep fake, shall disclose that the content has been artificially generated or manipulated", and a user "that generates or manipulates text which is published with the purpose of informing the public on matters of public interest shall disclose that the text has been artificially generated or manipulated."

Furthermore, article 31 of South Korea's AI Act establishes transparency obligations: "(1) AI business operators providing products or services using high-impact AI or generative AI shall notify users in advance that the product or service is based on such AI. (2) If providing generative AI or products or services using it, AI business operators shall indicate that the results were generated by generative AI. (3) If providing outputs generated by AI systems that are difficult to distinguish from reality—such as voices, images, or videos—AI business operators shall clearly inform users that the results have been created by an AI system. If the output is an artistic or creative work or part thereof, the notification or indication may be made in a way that does not hinder its exhibition or enjoyment."[18]

Finally, it is pertinent to mention that transparency is an enabler (a necessary first step) of other key objectives that AI regulations should consider, such as AI explainability and accountability.[19]

2.6 Adapting Existing Laws Approach

Some jurisdictions have preferred adapting sector-specific rules (e.g., health, finance, education, electoral, justice) and transversal rules (e.g., criminal codes, public procurement, data protection laws, labour laws) instead of issuing AI bills. One potential benefit of this approach is that it allows legislators to discuss and make incremental improvements to the regulatory framework based on what they learn about the implications of AI technologies.

For example, article 22 of the European Union's General Data Protection Regime (GDPR) establishes that "The data subject shall have the right not to be subject to a decision based solely on automated processing, including profiling, which produces legal effects concerning him or her or similarly significantly affects him or her." This adapts existing data protection regulations to account for the impact of AI use. Another example of adapting transversal rules is Colombia's Law 2,502 of 2025, which modified the Criminal Code to increase penalties for the crime of impersonation when AI systems (e.g., through deepfakes).

2.7 Risks-based Approach

Risks-based approaches aim at "prioritizing regulatory actions in accordance with an assessment of the risks."[20] This regulatory approach has been implemented in different sectors, including environmental, taxes, food safety, natural disasters, and consumer protection.[21]

The AI risks-based approach focuses on preventing problems and controlling risks associated with the development and use of AI systems. It does so by tailoring the obligations or requirements of the regulation based on the level of risk posed by different types of AI systems.[22] This approach prioritises objectives, differentiates risk types, and selects interventions based on risk levels.

A prominent example of this regulatory approach is the EU's AI Act, which establishes obligations based on different levels of risks: unacceptable, high,

limited, and minimal. According to article 3 (1a), "risk" is understood as "the combination of the probability of an occurrence of harm and the severity of that harm". The AI practices that fall under the "unacceptable risk" category are prohibited (see the list of banned AI practices in article 5). An example of such prohibited practices is the "use of 'real-time' remote biometric identification systems in publicly accessible spaces for the purpose of law enforcement", unless it is strictly necessary to follow objectives associated with certain criminal investigations and prevention of specific threats. Moreover, the AI systems that fall under the "high-risk" category must comply with specific duties related to risk management systems, data governance, technical documentation, record-keeping, transparency, human oversight, accuracy, robustness, and cybersecurity (Chapter 2 of Title III), and providers of high-risk AI systems must also comply with a set of requirements (Chapter 3 of Title III).

Other jurisdictions like South Korea introduced provisions on "high-impact AI" (article 2.4)[23], through article 32 which establishes obligations for AI businesses operators to implement the following measures for high-impact AI systems: 1) "Identifying, assessing, and mitigating risks throughout the AI lifecycle" and "Establishing a risk management system to monitor and respond to AI-related safety accidents" in their AI Act.[24]

2.8 Mandatory Rights-based Approach

The mandatory rights-based approach aims at ensuring that AI regulations protect individuals' rights and freedoms, emphasising human rights. This approach assumes that market failures are not the only rationale for regulating but that regulations are justified to protect rights, promote distributional justice, and further social objectives.[25] The rights-based approach enshrines new rights and establishes mandatory rules to guarantee the respect, protection, and promotion of rights, including human rights and other economic or social rights, along the AI system's life cycle. Furthermore, it is essential to note that this regulatory approach is based on legally binding international human rights treaties.

For example, Margaret Mitchell proposes a framework that identifies different stakeholder groups that could be negatively impacted in each stage of the AI system's life cycle (data creators, data subjects, AI developers, AI deployers, AI users, and AI-affected people), the human rights that could be affected in each case, and then the corresponding "regulatory artifacts" that could be necessary to protect each right.[26] Similarly, John Cantius Mubangizi proposes a human rights-based approach for African countries "to empower rights-holders (individuals or social groups that have particular entitlements in relation to duty- bearers) to claim and exercise their rights and to strengthen the capacity of duty-bearers (state or non-state actors) who are obliged to respect, protect, promote, and fulfil human rights."[27]

One prominent example of an AI rights-based approach is the EU's GDPR rules on the processing of personal data by Automated Decision Making (ADM) systems. The obligations are not subject to a certain level of risk but are universally imposed whenever these systems are used to treat personal data. Some civil society organisations have argued that a rights-based approach may offer stronger protections than a risk-based one, on the grounds that human rights obligations apply regardless of assessed risk levels, and that human rights "are non-negotiable and they must be respected regardless of a risk level associated with external factors."[28]

Similarly, Kenya's Data Protection Act of 2019 (DPA) establishes rights for data subjects concerning the automated processing of personal data. Section 35 (1) of the DPA establishes that "Every data subject has a right not to be subject to a decision solely based on automated processing, including profiling, which produces legal effects concerning or significantly affects the data subject." In addition, section 35 (2, 3) mandates data controllers or processors that decide with an ADM system must "notify the data subject in writing that a decision has been taken based solely on automated processing" and "the data subject may, after a reasonable period of receipt of the notification, request the data controller or data processor to (i) reconsider the decision; (ii) or take a new decision that is not based solely on automated processing."

There are two examples of AI bills that illustrate the creation of new rights associated with AI. First, chapter 3 of The Philippines' "AI Regulation Act" bill (HB 7913) establishes an "AI bill of rights" that develops four rights: (a) Right to Protection from

Unsafe and Ineffective AI Systems; (b) Right Against Algorithmic Discrimination; (c) Right to Privacy; (d) Right to Know." Second, the Brazilian bill No. 2238 / 2023 enshrines rights for persons affected by AI systems (articles 5 and 6), rights associated with "information and understanding of the decisions made by artificial intelligence systems" (articles 7 and 8), rights to "challenge decisions and request human intervention" (articles 9 and 11), and the "right to non-discrimination and the correction of direct discriminatory biases, indirect, illegal or abusive" (article 12).

2.9 Liability Approach

The liability approach assigns responsibility and sanctions for problematic uses of AI systems. The approach aims to impose mandatory standards of conduct backed by criminal, administrative, or civil liabilities. In this regulatory approach, "[t]he force of law is used to prohibit certain forms of conduct, to demand some positive actions, or to lay down conditions for entry into a sector."[29]

For example, the EU's AI Act established penalties for infringements of the regulation (articles 99–101). The non-compliance concerning the AI Act's prohibitions "shall be subject to administrative fines of up to 35 000 000 EUR or, if the offender is an undertaking, up to 7 % of its total worldwide annual turnover for the preceding financial year, whichever is higher" (article 99). Moreover, the lack of compliance with other obligations established for providers, authorized representatives, importers, distributors and deployers can be punished with "administrative fines of up to 15 000 000 EUR or, if the offender is an undertaking, up to 3 % of its total worldwide annual turnover for the preceding financial year, whichever is higher" (article 99).

3. Conclusions and key considerations for parliamentarians

Once the different regulatory approaches are identified, it will be pertinent to identify a tailored combination of AI regulatory approaches for specific contexts. For that purpose, policymakers could consider the following recommendations for their regulatory processes:

3.1 Human rights and digital divides: AI systems are powerful tools that can generate both significant benefits and impose significant negative externalities, including social, economic, and environmental ones. Furthermore, these tools' diverse positive and negative impacts are not necessarily distributed evenly across the population. In fact, due to digital divides within countries, the development and use of specific AI systems may yield enormous returns for a few powerful people while simultaneously causing significant adverse effects for the general population and marginalised groups. Consequently, regardless of the regulatory approach policymakers select, the regulatory processes should always consider protecting human rights, in accordance with International Law. In this vein, legislators should discuss and explore regulatory instruments that aim to address public problems and challenges associated with human rights and digital divides, such as the following: A) Gender and race-based discrimination may be caused, for example, by AI systems deployed for human talent recruitment that reproduce, reinforce, and exacerbate societal biases. B) Gender-based violence, for example, through the creation and distribution of sexually explicit deepfakes. C) Dissemination of misinformation, particularly regarding democratic, electoral, and political processes, is facilitated by the creation of generative AI media.[30] [31] D) Mass surveillance with AI-based biometric recognition systems can infringe on data protection and privacy laws and facilitate ethnic persecution and discrimination. E) Lack of accountability concerning the use of ADM systems in public and private organisations. F) Barriers to accessing and using AI systems, particularly for low-income families and people with disabilities. G) Access to data. H) Linguistic diversity. I) Capacity building/literacy.

3.2 Participatory and inclusive legislative processes: AI regulatory processes should be open to inclusive deliberation and consider diverse voices from the private sector, civil society organisations, public officials, technical stakeholders and groups and communities that may be affected by AI. Legislative bodies should effectively incorporate diverse perspectives into their processes rather than drafting regulations solely with the support of "experts". UNESCO guidance on multistakeholder approaches to AI policy making provides concrete steps to ensure that AI governance is inclusive and multistakeholder driven along the policy cycle.[32]



3.3 Explore regulatory instruments that respond to specific policy challenges through evidence-based processes: Since AI is an umbrella term for technologies with diverse functions and varied consequences, no single policy intervention or regulatory instrument can address all of them. A one-size-fits-all regulation that applies indiscriminately to AI tools may be counterproductive. On the other hand, broad and lax regulation could foster a sense of false security without actually preventing or solving problems. Therefore, regulators should aim to identify, diagnose, and address specific problems and challenges associated with the use of different AI systems, and legislate on that basis.



3.4 Agile regulation: The rapid evolution of AI systems and other emerging digital technologies requires flexible regulatory arrangements, particularly when the risks are low and human rights are not at stake. Sandboxes and testbeds should be part of the "agile" regulatory toolbox available to policymakers to accommodate the fast pace of technological innovation. Parliamentarians can learn from sandboxing experiences in other countries where these schemes have been established for information and communication technologies (ICT) and fintech, among others.[33]



3.5 Identify good practices and learn from other jurisdictions' experiences: Identify good practices from other jurisdictions, not just substantive but process-related, such as strengthening multi-stakeholder participation in regulatory processes. The call for identifying "good practices" is not that policymakers should engage in isomorphic mimicry, meaning transplanting foreign policies and procedures, but lacking the institutional context that supports them.[34] Regulation should not result from transplanting foreign standards without considering local contexts and needs. Instead, the good practices could include: A) Identifying which problems and issues associated with AI have been documented.[35] B) Understanding the life cycles of the technologies that will be regulated.[36] C) Considering diverse regulatory tools ranging from persuasion to coercion (as explained in section 3 of this policy brief).[37] D) Monitoring the results and impacts of regulations and being open to new regulatory iterations through agile approaches.[38] E) Creating and strengthening multi-stakeholder venues for AI regulation deliberation that can provide inputs for legislative processes.[39] [40]



3.6 Prepare for implementation challenges: Establishing objectives is not enough to achieve them; it is also necessary to address implementation challenges and consider context-specific solutions.[41] Hence, it is critical that legislators are aware of the institutional capacities that their respective countries have and should build to foster enabling environments for AI development and use and enforce laws.[42]

This policy brief aims to advance national conversations on translating global standards into governance approaches. The document does not endorse a specific AI regulatory approach. Instead, it explains nine emerging regulatory approaches and provides specific examples from different countries to illustrate each. These nine AI regulatory approaches are not exclusive and can be combined into one or more pieces of legislation.

Annex 1 List of cited AI laws and bills

It is important to note that this issue brief mentions the legislative initiatives below purely as illustrations of the typologies we discuss, their presentation here doesn't mean an assessment vis a vis the alignment of these laws with international human rights law.

JURISDICTION	IDENTIFICATION AND TITLE (IN THEIR ORIGINAL LANGUAGE)
Brazil	Bill: Projeto de Lei No. 2238 / 2023, «Dispõe sobre o uso da Inteligência Artificial».
Colombia	Law: Ley 2502, "Por medio del cual se modifica y establece un agravante al artículo 296 de la Ley 599 del 2000, Código Penal Colombiano y se dictan otras disposiciones".
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Endnotes

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Are you a policymaker wondering which concrete tools you can use to govern AI in your country, beyond high-level principles and political declarations? This brief walks you through nine regulatory approaches already in use worldwide – from principles and technical standards to sandboxes, transparency duties, risks-based obligations, rights-based safeguards and liability regimes – showing, with real legislative examples, what each approach looks like in practice and how it changes the way AI is developed, deployed and overseen in different sectors.

Launched ahead of the first Global Dialogue on AI Governance, the brief situates national regulatory choices within wider UN processes such as the Global Digital Compact and the Pact for the Future, and builds on UNESCO's Recommendation on the Ethics of Artificial Intelligence adopted by 193 Member States. It highlights how policymakers can move from high-level principles to workable rules by centering human rights, tackling digital divides, and investing in inclusion and capacity-building so that AI contributes to stronger institutions, democratic resilience and sustainable development.

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